

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #3	CCRB Case #: 201702959	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 03/23/2017 10:15 AM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 9/23/2018	EO SOL 9/23/2018	
Date/Time CV Reported Mon, 04/17/2017 4:13 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 04/17/2017 4:13 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Rafael Zaldivar	09441	947874	062 PCT
2. POM Thomas Mercado	23011	942195	062 PCT
3. POF Eleanor Kelly	30075	888902	062 PCT
4. POM Tomas Schir	27736	945438	062 PCT
5. POM Joseph Tozzi	09898	948150	062 PCT
6. POM Christophe Corulla	17903	936394	062 PCT
7. An officer			062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Thomas Mercado	Abuse: Police Officer Thomas Mercado removed § 87(2)(b) to a hospital.	§ 87(2)(b)
B.POM Rafael Zaldivar	Abuse: Police Officer Rafael Zaldivar removed § 87(2)(b) to a hospital.	§ 87(2)(b)
C.POM Joseph Tozzi	Abuse: Police Officer Joseph Tozzi removed § 87(2)(b) to a hospital.	§ 87(2)(b)
D.POM Christophe Corulla	Abuse: Police Officer Christopher Corulla removed § 87(2)(b) to a hospital.	§ 87(2)(b)
E.POF Eleanor Kelly	Abuse: Police Officer Eleanor Kelly removed § 87(2)(b) to a hospital.	§ 87(2)(b)
F.POM Tomas Schir	Abuse: Police Officer Tomas Schir removed § 87(2)(b) to a hospital.	§ 87(2)(b)
G. An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon gender.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint in person at the CCRB on April 17, 2017.

At approximately 10:30 am on March 23, 2017, PO Thomas Mercado, PO Rafael Zaldivar, PO Joseph Tozzi, PO Christopher Corulla, PO Tomas Schir, and PO Eleanor Kelly, all of the 62nd Precinct, responded to § 87(2)(b) following a 911 call made by a doctor. EMT's § 87(2)(b) and § 87(2)(b) arrived shortly after and told § 87(2)(b) that she needed be taken to the hospital (**Allegations A, B, C, D, E, and F**). § 87(2)(b) initially refused, and an officer allegedly said "Come on, honey," or, "Honey, let's get it together" (**Allegation G**), before § 87(2)(b) ultimately complied and was taken to § 87(2)(b) where she was held in the psychiatric ward until § 87(2)(b).

This case is being submitted more than 90 days after it was assigned due to the fact that the final officer interview with PO Schir had to be rescheduled three times due to an MOS funeral, a traffic court conflict, and a failure to notify by the 62nd Precinct.

There is no video footage for this case.

Mediation, Civil, and Criminal Histories

- This case was unsuitable for mediation § 87(2)(g)
- No Notice of Claim has been filed regarding this incident (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 17).
- In 9 years with the NYPD, PO Zaldivar has been the subject of one allegation, which was not substantiated. § 87(2)(g)
- In 11 years with the NYPD, PO Mercado has been the subject of one allegation which was not substantiated. § 87(2)(g)
- In 8 years with the NYPD, PO Tozzi has previously been the subject of two allegations, which were not substantiated. § 87(2)(g)
- In 12 years with the NYPD, PO Corulla has previously been the subject of seven allegations in three CCRB cases. None of these allegations were substantiated § 87(2)(g)
- In 31 years with the NYPD, PO Kelly has been the subject of eight prior allegations in six CCRB cases. None of these allegations were substantiated § 87(2)(g)
- In 9 years with the NYPD, this is the first case in which PO Schir was the subject of a FADO allegation. § 87(4-b) § 87(2)(g)

Potential Issues

- § 87(2)(b) declined to complete HIPAA release forms. As such, no medical records could be obtained for this case.
- § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

Findings and Recommendations

Subject Officer Identification

- While Sgt. Nicholas Rosado was assigned to respond to § 87(2)(b)'s apartment according to the Resource Recap Log (Board Review 01), he and his operator PO Gregory Floyd were interview but had no recollection of the incident and no other officer recalled them being at the scene. Furthermore, both Sgt. Rosado and PO Floyd's Memo Books (Board Reviews 02 and 03) show that they responded to a "body in the water" job at 10:40 am, approximately ten minutes after § 87(2)(b)'s doctor called 911. § 87(2)(g)
- While neither PO Kelly nor PO Schir recalled the incident, PO Schir's Memo Book (Board Review 04) indicates that they responded to the scene, which is consistent with the Resource Recap Log and § 87(2)(b)'s statement that a total of six officers were present. Therefore, it was determined that PO Schir and PO Kelly were at the scene in addition to PO Mercado, PO Zaldivar, PO Tozzi, and PO Corulla. § 87(2)(g)
- § 87(2)(b) said in her interview (Board Review 05) that the officer who called her "honey" was a white male who was "kind of dark, maybe Italian," 5'6" tall, with a slim build and black hair. PO Mercado, PO Zaldivar, and PO Tozzi are all males with light or medium complexions who are at least 200 lbs. and 5'10" tall, while PO Corulla and PO Schir are both 5'6" tall with light complexions, weighing 165 lbs. and 185 lbs. respectively. PO Tozzi and PO Zaldivar both have black hair, while PO Corulla, PO Mercado, and PO Schir have brown hair. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Thomas Mercado removed § 87(2)(b) to a hospital.

Allegation B – Abuse of Authority: Police Officer Rafael Zaldivar removed § 87(2)(b) to a hospital.

Allegation C – Abuse of Authority: Police Officer Joseph Tozzi removed § 87(2)(b) to a hospital.

Allegation D – Abuse of Authority: Police Officer Christopher Corulla removed § 87(2)(b) to a hospital.

Allegation E – Abuse of Authority: Police Officer Eleanor Kelly removed § 87(2)(b) to a hospital.

Allegation F – Abuse of Authority: Police Officer Tomas Schir removed § 87(2)(b) to a hospital.

§ 87(2)(b) said in her interview (Board Review 05) that while making breakfast, she stepped into her hallway to speak with six police officers who had knocked on her door. An officer asked if she had spoken to her doctor recently, but § 87(2)(b) did not know what they were talking about and the officers did not otherwise explain what was going on. § 87(2)(b) explained to the officers that she believed the NYPD and FDNY were following her constantly, but she did not, “exude any type of emotional disturbance.” § 87(2)(b) invited the officers into her apartment, because she did not want her neighbors to hear the conversation. Approximately five minutes later, two EMS personnel arrived and told § 87(2)(b) she had to go to the hospital, though § 87(2)(b) indicated at another point in the interview that EMS only arrived after she had been told she would be taken to the hospital by the officers. Although she did not understand why she had to go and was upset, she complied and walked out of her building into an EMS van, and was taken to § 87(2)(b) where she was held in the psychiatric ward § 87(2)(b). § 87(2)(b)'s written intake statement (Board Review 06) was consistent with her interview.

In her interview at the CCRB (Board Review 07), EMT § 87(2)(b) said that she was told via her dispatch system that § 87(2)(b) had a “known psych history,” was potentially suicidal or violent, and was not taking her medications. A doctor had called 911 to request that EMS check on § 87(2)(b). When § 87(2)(b) arrived with her partner EMT § 87(2)(b), § 87(2)(b) was with officers inside of her apartment, saying things which did not make sense, pacing, dropping things, and reading from a Bible. There were also bottles inside of the apartment which were labeled, “poison.” § 87(2)(b) and § 87(2)(b) spoke to § 87(2)(b) and § 87(2)(b) determined that she needed to be evaluated at a hospital, because she was not capable of making her own decisions about her condition. § 87(2)(b) initially refused, but after approximately an hour of talking with her, she agreed to go. § 87(2)(b)'s interview (Board Review 08) was generally consistent with § 87(2)(b)'s. He did not recall who specifically made the decision to take § 87(2)(b) to the hospital.

The statements of PO Mercado (Board Review 09), PO Zaldivar (Board Review 10), and PO Corulla (Board Review 11) were consistent with those of § 87(2)(b) and § 87(2)(b) to the degree that § 87(2)(b) was behaving erratically and that EMS made a determination that she needed to be removed to the hospital. PO Tozzi said (Board Review 12) that after initially speaking with § 87(2)(b) he called her doctor at a number provided by the dispatcher, and the doctor told him § 87(2)(b). PO Tozzi could not recall who specifically made the decision to take § 87(2)(b) to the hospital but understood the general policy to be that such determinations are made by EMS. As discussed above, PO Schir (PO Board Review 13) and PO Kelly (Board Review 14) did not recall the incident.

In the 911 audio recording (Board Review 18), a woman identifying herself as § 87(2)(b)'s doctor tells the operator at 3:30 that § 87(2)(b) should be taken to the hospital. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

At 2 seconds in the radio dispatch audio (Board Review 15), a dispatcher notifies PO Mercado and PO Zaldivar regarding an ambulance case for an EDP who is described as “possibly violent,” and suffers from schizophrenia, adding that this information is from § 87(2)(b) s doctor. At 13:35, an officer contacts the dispatcher and obtains a call back number for the doctor. At 36:25, either PO Mercado or PO Zaldivar calls the dispatcher and states that he is escorting EMS to § 87(2)(b)

A person who appears to be mentally ill or temporarily deranged, and is conducting themself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others, must be removed to the hospital. PG 221-13 (Board Review 16).

§ 87(2)(g)

Allegation G – Offensive Language: An officer made remarks to § 87(2)(b) based upon gender.

§ 87(2)(b) said in her interview that prior to her complying and going to the hospital, an officer said to her, “Honey, let’s get it together,” or, “Come on, honey.” § 87(2)(b) felt this was arrogant and replied, “Please don’t call me honey.” She did not make this allegation in her written statement.

Neither § 87(2)(b) nor § 87(2)(b) recalled any officer making either of the alleged offensive statements.

No officer recalled saying either of the alleged offensive phrases, using the word honey, or hearing any other officer do so. PO Corulla said that § 87(2)(b) told the officers not to call her “ma’am,” and instead to call her “reverend.”

§ 87(2)(g)

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date